

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
CORNELIUS WHYTE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
CARMEN DEL VALLE TAX I.D. #: 963951 OF 49th
PRECINCT, SERGEANT BRIAN GRANIOLA, TAX I.D.
#944608 OF 49th PRECINCT, AND POLICE OFFICERS
"JOHN DOES & JANE DOES #1-6" (Names being
fictitious as they are currently unknown,

Defendants,
-----XIndex No.:
Date Purchased:Plaintiffs designate:
Bronx County as the place of
trial.

SUMMONS

The basis of venue is:
Place of occurrencePlaintiff resides at:
2814 Bronx Park E, Apt B41
Bronx, NY 10467

County of Bronx

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
August 4, 2020
KENNETH J. ZWEIG
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff
CORNELIUS WHYTE
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No.: 9552

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICERS "JOHN DOES & JANE DOES" 1-6"
(names to be fictitious as they are currently unknown)
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT - 49th PRECINCT
CARMEN DEL VALLE TAX I.D. #: 963591
2121 Eastchester Rd
Bronx, NY 10461

NEW YORK CITY POLICE DEPARTMENT - 49th PRECINCT
SGT. BRIAN GRANIOLA TAX I.D. #: 944608
2121 Eastchester Rd
Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CORNELIUS WHYTE,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICERS
CARMEN DEL VALLE TAX I.D. #: 963591, SERGEANT
BRIAN GRANIOLA, TAX I.D. #944608 AND POLICE
OFFICERS "JOHN DOES & JANE DOES #1-6" (Names
being fictitious as they are currently unknown,

Defendants,
-----X

CORNELIUS WHYTE, by and through his attorneys, **GETZ & BRAVERMAN, P.C.**,

respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

(1) At all times mentioned, Plaintiff **CORNELIUS WHYTE**, is a resident of the
County of Bronx, City and State of New York.

(2) At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a
municipal corporation duly organized and existing by virtue of the Laws of the State of New
York.

(3) Upon information and belief, at all times mentioned, Defendants **POLICE
OFFICERS CARMEN DEL VALLE, TAX I.D. #: 963591, SERGEANT BRIAN
GRANIOLA, TAX I.D. #944608 AND POLICE OFFICERS "JOHN DOES #1-6" (Names
being fictitious as they are currently unknown)**, were and are police officers of the Defendant
City of New York, and at all times herein were acting in such capacity as the agents, servants
and employees of the Defendant, **THE CITY OF NEW YORK**.

(4) On or about January 11, 2019 near or in front of 2814 Bronx Park E, County of

Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **CORNELIUS WHYTE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

(5) On or about January 11, 2019 near or in front of 2814 Bronx Park E, Bronx, County of Bronx, City and State of New York, the Defendants **THE CITY OF NEW YORK, POLICE OFFICERS CARMEN DEVALLE TAX I.D. # 963591, SERGEANT BRIAN GRANIOLA, TAX I.D. #944608, AND POLICE OFFICERS "JOHN DOES #1-6" (Names being fictitious as they are currently unknown)**, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **CORNELIUS WHYTE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants near or in front of 2814 Bronx Park E, Bronx, County of Bronx, City and State of New York, have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. At no time did the Defendants near or in front of 2814 Bronx Park E, Bronx, County of Bronx, City and State of New York, have privilege to arrest Plaintiff **CORNELIUS WHYTE**.

(6) At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected

(7) On March 20th, 2020 Governor Andrew Cuomo issued Executive Order 202.08, which provides in pertinent part:

In accordance with the directive of the Chief Judge of the State (of New

York) to limit court operations to essential matters during the pendency of the COVID-19 health crisis, any specific time limit for the commencement, filing, or service of any legal action, notice, motion, or other process or proceeding, as prescribed by by the procedural laws of that state, including but not limited to the criminal procedure law, the family court act, the civil practice law and rules, the court of claims act, the surrogate court procedure act, and the uniform court acts, or by any other statute, local law, or ordinance, order, rule, or regulation, or part thereof, is hereby tolled from the date of this executive order until April 19, 2020.

Subsequently, Executive Order 202.14, extended the provisions of Executive Order 202.8 to May 7th, 2020. Executive Order 202.28 extended the provisions of Executive Order 202.8 to June 6, 2020. Executive Order 202.38 extended the provisions of Executive Order 202.8 to July 7, 2020. Executive Order 202.48 extended the pertinent provisions of executive Order 202.8 to August 5, 2020.

- (8) A 50-H Hearing has was held on December 3, 2019.

AS AND FOR A SECOND CAUSE OF ACTION

(9) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "8" with full force and effect as though set forth at length herein.

(10) On or about January 11, 2019 near or in front of 2814 Bronx Park E, County of Bronx, State of New York the Defendants and **THE CITY OF NEW YORK, POLICE OFFICERS CARMEN DEL VALLE TAX I.D. #: 963591, SERGEANT BRIAN**

GRANIELA, TAX I.D. #944608, AND POLICE OFFICERS "JOHN DOES #1-6" (Names being fictitious as they are currently unknown), jointly and severally did place Plaintiff CORNELIUS WHYTE, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs, and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

(11) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "10" with full force and effect as though set forth at length herein.

(12) On or about January 11, 2019 near or in front of 2814 Bronx Park E, County of Bronx, City and State of New York the Defendants jointly and severally without any valid warrant, order or other legal process, misidentified and accused the plaintiff falsely, wrongfully, and unlawfully then arrested the Plaintiff, restrained him and his liberty and then took him into custody to the 49th Precinct in the County of Bronx, City and State of New York, without probable cause.

AS AND FOR A FOURTH CAUSE OF ACTION

(13) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "12" with full force and effect as though set forth at length herein.

(14) On or about January 11, 2019 near or in front of 2814 Bronx Park E, County of Bronx, City and State of New York the Defendants, jointly and severally without any valid warrant, order, or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody for two

(2) days. The Plaintiff was thereafter held in custody over the course of approximately two (2) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(15) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "14" with full force and effect as though set forth at length herein.

(16) Upon information and belief, on or about January 11, 2019, and from that time until the dismissal of charges on or about April 9, 2019, Defendants **THE CITY OF NEW YORK, POLICE OFFICERS CARMEN DEVALLE TAX I.D. #: 963591, SERGEANT BRIAN GRANIELA, TAX I.D. #944608, AND POLICE OFFICERS "JOHN DOES #1-6"** (Names being fictitious as they are currently unknown), held an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

(17) The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

(18) The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

(19) As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple request to the Warden for a court appearance and/or appeals to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of Action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

(20) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "19" with full force and effect as though set forth at length herein.

(21) Defendants **POLICE OFFICERS CARMEN DEVALLE TAX I.D. #: 963591, SERGEANT BRIAN GRANIELA, TAX I.D. #944608, and P.O. "JOHN DOE" #1 - 6 (the names herein to be fictitious as they are currently unknown)**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

(22) At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

(23) Plaintiff **CORNELIUS WHYTE**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

(24) The Defendant **THE CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

(25) On or about January 11, 2019, the Defendants, armed police, while effectuating

the seizure of Plaintiff **CORNELIUS WHYTE**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

(26) The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment.

(27) The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

AS AND FOR A SEVENTH CAUSE OF ACTION

(28) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein. (This Cause of Action applies to the City of New York and the officer sued in their official capacity should be characterized as a "Monell" claim.)

(29) Defendant **THE CITY OF NEW YORK**, has grossly failed to train and

adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

(30) **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff(or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should be used where a criminal defendant is not resisting arrest.

(31) **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. An individual such as the Plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable

suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.

(32) The foregoing acts, omissions and systemic failures are customs and policies of the **THE CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied his prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

(33) Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers, Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

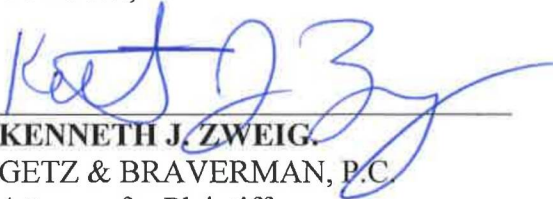
(34) **THE CITY OF NEW YORK'S** failure to train its police officers to distinguish between individuals who are lessee's and/or reside at the apartment of sufficient length of time as evidenced by utility bills in their name, letters/mail addressed to them at the residence and/or magazine subscriptions, etc as opposed to individuals who are mere guests and/or visitors who do not have the right to exercise dominion and control over the residence as evidenced by their not having any furniture in the apartment, their name on the lease, their name on a utility bill or mail addressed to them are all factors that the City in the past has ignored. As these same fact patterns have come up over the past twenty-five (25) years with alarming frequency as evidenced by past notice of claims that the firm has filed with the City of New York in the past

on multiple occasions sufficient to demonstrate a pattern by the City's police officers of continued violations of individuals similarly situated to the Plaintiff. The pattern demonstrates that either a defacto policy/custom exists to allow this behavior by failing to discipline its officers or this is a custom of its police officers who have no and/or sufficient training and/or no proper supervision and/or disciplinary penalties assessed against them for continued acting in an unconstitutional manner. The Plaintiff's counsel has approximately thirty-two (32) Notice of Claims spanning approximately 10 years to demonstrate a pattern practice and custom of deliberate indifference by the City. In the past, this represents at least a de facto policy by **THE City OF New York** in countenancing unconstitutional behavior, by not disciplining and/or not properly supervising/training its individual police officers in the proper procedure of arresting or not arresting individuals who may be merely present at an apartment.

WHEREFORE, Plaintiff demands judgement against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bronx, New York
August 4, 2020

Yours etc.,



KENNETH J. ZWEIG.

GETZ & BRAVERMAN, P.C.

Attorney for Plaintiff

CORNELIUS WHYTE

172 East 161st Street

Bronx, New York 10451

(718) 993-3000

Our File No.: 9552

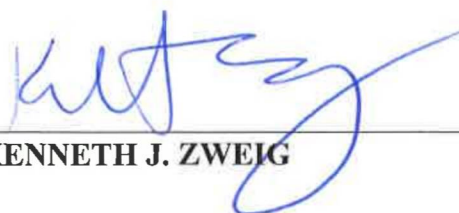
ATTORNEY'S VERIFICATION BY AFFIRMATION

KENNETH J. ZWEIG, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), **CORNELIUS WHYTE**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
August 4, 2020



KENNETH J. ZWEIG

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CORNELIUS WHYTE,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICERS CARMEN DEVALLE TAX I.D. #: 963591,
AND POLICE OFFICERS "JOHN DOES #1-6" (Names being fictitious as they are currently
unknown,

Defendant(s).

VERIFIED SUMMONS AND COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff CORNELIUS WHYTE,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE POLICE DEPARTMENT
OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICERS "JOHN DOES" 1-4"
(names to be fictitious as they are currently unknown)
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT - 49th PRECINCT
CARMEN DEVALLE TAX I.D. #: 963591
2121 Eastchester Rd
Bronx, NY 10461